HARTFELT

REAL ESTATE

Because Choices Matter.

HartFelt Real Estate LLC

Brokerage Policies & Procedures Manual

Effective Date: January 1, 2026

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AGENT POLICY & PROCEDURES MANUAL
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

Applies To: All affiliated sales associates, broker associates, teams, assistants, and independent contractors

Additional brokerage policies, including but not limited to advertising rules, technology policies, MLS compliance policies, transaction file requirements, and standard operating procedures, are provided as separate policy documents and are incorporated into Brokerage policy by reference.

1. PURPOSE OF THIS MANUAL

This Manual establishes the policies, procedures, and standards governing all agents affiliated with **Hartfelt Real Estate LLC** ("Brokerage"). Its purpose is to:

- Ensure compliance with Florida law and DBPR/FREC regulations
- Protect clients, agents, and the Brokerage
- Define expectations for professionalism, conduct, and performance
- Provide consistency across transactions, marketing, and technology use

Compliance with this Manual is a condition of affiliation.

2. LICENSE STATUS & AFFILIATION

- Agents must maintain an **active Florida real estate license in good standing** at all times.
- Agents must immediately notify the Brokerage of:
    - License status changes
    - Disciplinary actions
    - Criminal or regulatory matters
- Failure to maintain licensure is grounds for immediate suspension or termination.

3. INDEPENDENT CONTRACTOR STATUS

- Agents are **independent contractors,** not employees.
- Agents are responsible for:
    - Taxes
    - Business expenses
    - Insurance not provided by the Brokerage
- Brokerage supervision is required under Florida law and does not alter the independent contractor relationship between the Brokerage and the Agent.

(See: Independent Contractor Agreement & Classification Statement.)

4. BROKER SUPERVISION & TRANSACTION OVERSIGHT

4.1 Required Broker Review

All transactions are subject to Broker of Record review, including:

- Listing agreements
- Offers and counteroffers
- Disclosures and addenda
- Closing documentation

4.2 Transaction Files

Agents must submit complete transaction files in accordance with Brokerage timelines and checklists.

Incomplete or late files may result in:

- Delayed commission payment
- Disciplinary action

5. ESCROW & TRUST ACCOUNT RULES

- Agents may not hold, deposit, or disburse escrow funds unless expressly authorized.
- Escrow funds must be delivered to the Brokerage within required statutory timeframes.
- Commingling or mishandling of funds is strictly prohibited and may result in termination and reporting to regulators.

6. FAIR HOUSING & ANTI-DISCRIMINATION

- Agents must comply with all fair housing laws.
- Discrimination, steering, or biased language is strictly prohibited.
- Marketing and AI-generated content must be reviewed for compliance.

Violations will result in immediate corrective action.

7. RESPA & REFERRAL COMPLIANCE

- No kickbacks, referral fees, or things of value are permitted outside approved arrangements.
- All referral and co-marketing agreements require Broker approval.
- SmartBuy and lead programs may not be used to mask referral compensation.

8. COMMISSION, SPLITS & LEADS

8.1 Commission Structure

- Agent compensation is governed by the Commission Agreement & Split Schedule.
- Brokerage-Generated Leads are governed by the Brokerage Lead Fee Addendum.

8.2 Lead Ownership

- Brokerage-Generated Leads (including SmartBuy) are the property of the Brokerage.
- Failure to follow up or comply may result in lead reassignment.

9. ADVERTISING, BRANDING & SOCIAL MEDIA

- All advertising must:
    - Clearly identify the Brokerage
    - Be accurate and non-misleading
    - Comply with MLS and state requirements
- Team names, logos, websites, and social media accounts require Broker approval.
- Agents may not guarantee pricing, returns, or outcomes.

10. SMARTBUY PROGRAM USE

- SmartBuy is an optional Brokerage program.
- Agents using SmartBuy must:
    - Use approved disclosures
    - Avoid guarantees or investment advice
    - Follow Broker supervision requirements

SmartBuy is a tool, not a substitute for professional judgment.

11. TECHNOLOGY, DATA & CONFIDENTIALITY

- Agents must use Brokerage-approved systems for transaction and client data.
- Confidential information must be protected at all times.
- Wiring instructions may never be sent or altered outside approved protocols.

12. PROFESSIONAL CONDUCT

Agents are expected to:

- Act honestly and ethically
- Communicate professionally
- Protect client interests
- Avoid conflicts of interest

Harassment, misconduct, or unprofessional behavior will not be tolerated.

13. DISCIPLINE & TERMINATION

The Brokerage may:

- Issue warnings or require retraining
- Suspend access to systems or leads
- Terminate affiliation immediately for serious violations

Upon termination:

- All branding use must cease
- Files and records must be returned
- Commission rights are governed by written agreements

14. RECORDKEEPING & RETENTION

- Agents must submit all transaction records for Brokerage retention.
- Records may not be destroyed or altered outside policy.

15. AMENDMENTS

This Manual may be updated at any time by the Brokerage. Agents will be notified of material changes.

BROKER SUPERVISION POLICY

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

HartFelt Real Estate LLC

Effective Date: December 12, 2025

This Broker Supervision Policy establishes the procedures by which HartFelt Real Estate LLC ("Brokerage") supervises the real estate activities of its agents in accordance with Florida Statutes Chapter 475 and FREC rules.

The purpose of this policy is to ensure:

- Regulatory compliance
- Proper handling of transactions
- Consumer protection
- Risk management for the Brokerage and its agents

1. BROKER OF RECORD RESPONSIBILITIES

The Broker of Record is responsible for the supervision of all real estate activities conducted under the Brokerage license.

Broker supervision includes:

- Oversight of real estate transactions
- Review of contracts and transaction documentation
- Monitoring of advertising and marketing
- Oversight of escrow procedures
- Ensuring compliance with Florida real estate laws and regulations
- Providing guidance to agents on compliance and risk management

The Broker of Record has final authority regarding brokerage policies, compliance matters, and transaction approvals.

2. TRANSACTION SUPERVISION

Agents must submit transaction documents for broker review in accordance with Brokerage procedures.

Supervision may include review of:

- Listing agreements
- Buyer representation agreements
- Purchase and sale agreements
- Amendments and addenda
- Disclosures required by law
- Closing statements

Agents are responsible for submitting complete and accurate transaction files. Failure to submit required documents may delay commission payment or result in disciplinary action.

3. ADVERTISING SUPERVISION

The Brokerage supervises all advertising conducted by its agents.

Advertising requirements include:

- Brokerage name must be clearly disclosed
- Advertising must not be false, misleading, or deceptive
- Marketing materials must comply with Florida law and MLS rules

The Broker of Record reserves the right to require modification or removal of non-compliant advertising.

4. ESCROW SUPERVISION

Agents must comply with Florida escrow laws and Brokerage escrow procedures.

Agents may not:

- Hold escrow funds unless specifically authorized
- Provide escrow instructions outside approved procedures

Escrow disputes must be reported immediately to the Broker of Record.

5. TRAINING AND GUIDANCE

The Brokerage may provide training, guidance, and compliance updates to agents.

Agents are expected to:

- Stay informed about real estate laws and regulations
- Attend training sessions when required
- Seek broker guidance when compliance questions arise

6. INCIDENT REPORTING

Agents must promptly notify the Broker of Record of any incident that may present legal, regulatory, or reputational risk.

Examples include:

- Client complaints
- Potential contract disputes
- Threatened legal action
- MLS violations
- Escrow issues

Agents must submit a Brokerage Incident Report within 24 hours when required.

7. DOCUMENT RETENTION

Transaction records must be maintained in accordance with Brokerage policy and Florida law.

Agents must ensure that all required documentation is uploaded and retained within Brokerage systems.

8. DISCIPLINARY ACTION

Failure to comply with Brokerage policies or regulatory requirements may result in disciplinary action including:

- Written warning
- Mandatory training
- Suspension of activities
- Termination of affiliation

9. POLICY AMENDMENTS

The Brokerage reserves the right to amend this policy as necessary to maintain regulatory compliance and operational efficiency.

Agents will be notified of material updates.

ADVERTISING RULES & MARKETING POLICY

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

HartFelt Real Estate LLC

Effective Date: January 1, 2026

This Advertising Rules & Marketing Policy ("Policy") governs all advertising, marketing, branding, and promotional activity conducted by sales associates, broker associates, teams, and other affiliated licensees of HartFelt Real Estate LLC ("Brokerage").

Compliance with this Policy is mandatory and is a condition of affiliation with Brokerage.

1. PURPOSE

The purpose of this Policy is to ensure that all advertising and marketing conducted by affiliated licensees is lawful, accurate, professional, brand-consistent, and compliant with applicable Florida law, Florida Real Estate Commission ("FREC") rules, MLS requirements, fair housing laws, and Brokerage standards. Florida requires real estate advertising to make clear that the public is dealing with a real estate licensee, to include the licensed brokerage name, and not to be false, fraudulent, deceptive, or misleading.

2. SCOPE

Violations will result in immediate corrective action.

- print advertising;
- flyers, brochures, postcards, mailers, and signage;
- websites, landing pages, and domain names;
- social media posts, reels, stories, videos, livestreams, and profiles;
- email marketing, newsletters, text messages, and direct messages;
- online lead generation platforms and digital ads;
- AI-assisted or AI-generated marketing content;
- listing promotion and personal branding connected to licensed real estate activity.

3. GENERAL ADVERTISING STANDARDS

All advertising and marketing must be:

- truthful, accurate, and professional;
- clear and not misleading;
- compliant with Florida law, FREC rules, MLS rules, and fair housing requirements;
- consistent with Brokerage brand standards and policies.

No licensee may publish, distribute, or cause to be published any advertisement that is false, deceptive, misleading, incomplete in a material way, or likely to create a false impression.

4. REQUIRED BROKERAGE IDENTIFICATION

4.1 Brokerage Name

All real estate advertising must clearly include the licensed name of the brokerage firm, HartFelt Real Estate LLC, or another approved licensed name or trade name used by Brokerage, in a manner that is readily noticeable and readable. Florida's advertising rule requires inclusion of the licensed brokerage name.

4.2 Licensee Identification

Advertising must make clear that the individual featured is a real estate licensee affiliated with HartFelt Real Estate LLC. If a licensee's personal name appears in advertising, the name used must comply with Florida requirements, including use of the licensee's registered last name at minimum.

4.3 Readability and Prominence

Brokerage identification must not be hidden, obscured, or displayed in a manner that is difficult for a reasonable consumer to notice or read.

5. PROHIBITED ADVERTISING PRACTICES

Licensees may not:

- make false, deceptive, misleading, or unsubstantiated statements;
- guarantee sales prices, appreciation, profits, returns, closing outcomes, or investment performance;
- use phrases such as "guaranteed profit," "risk-free," "can't lose," or similar claims suggesting certainty;

- advertise a property without proper authorization;
- advertise another broker's listing without required permission;
- misrepresent zoning, property condition, use, lot size, income potential, or development potential;
- misuse "coming soon" status or advertise listings in violation of MLS rules;
- manipulate photos, videos, renderings, or AI content in a misleading manner;
- publish misleading statistics, testimonials, rankings, or production claims;
- engage in discriminatory advertising or steering

6. FAIR HOUSING COMPLIANCE

All advertising must comply with applicable fair housing laws.

Advertising may describe the property and its features, but may not describe preferred or intended occupants, protected classes, or neighborhood characterizations in a discriminatory or exclusionary way.

Licensees are responsible for reviewing all marketing, including AI-assisted content, for bias, exclusionary language, or other fair housing concerns before publication.

7. TEAM NAMES, GROUP NAMES, AND VANITY BRANDS

All team names, group names, logos, websites, social handles, vanity brands, and branded marketing concepts require prior written approval from Brokerage.

No team or group name may:

- suggest that the team or group is a separate brokerage or independent real estate company; or
- include words or terms prohibited under Florida rules for team/group names, including terms such as real estate, realty, brokerage, brokers, company, corporation, corp., LLC, Inc., properties, property, or associates, or similar wording that suggests a separate real estate business. Florida's team/group rule restricts these kinds of names and also requires the team/group name not be larger than the brokerage name in advertising.

Any approved team or group advertising must:

- clearly identify HartFelt Real Estate LLC; and
- display the team or group name no larger than the name of the registered brokerage.

8. SOCIAL MEDIA & DIGITAL MARKETING

All social media and digital marketing related to licensed real estate activity must comply with this Policy.

Licensees must:

- accurately identify their Brokerage affiliation where required;
- ensure posts, profiles, stories, reels, videos, captions, and bios comply with applicable law and Brokerage standards;
- avoid misleading claims, unverified market statements, unauthorized listing promotion, or inaccurate production claims;
- promptly revise or remove content upon Brokerage request.

Direct messages, text messages, and email marketing related to real estate services are considered advertising and must comply with this Policy.

9. SMARTBUY, INCENTIVE PROGRAMS, AND TECHNOLOGY-ASSISTED MARKETING

When promoting SmartBuy or similar programs, licensees must use Brokerage-approved language and any required disclosures.

Licensees may not present SmartBuy or similar offerings as:

- legal advice;
- tax advice;
- financial or investment advice;
- a guaranteed savings or result;
- a required program for a buyer or seller.

All program descriptions must be accurate, balanced, and approved where required by Brokerage.

10. AI-GENERATED OR AI-ASSISTED CONTENT

AI tools may be used only as drafting or creative-assistance tools and not as a substitute for human review.

Before publication, the licensee is responsible for verifying:

- factual accuracy;
- legal compliance;
- fair housing compliance;
- image authenticity and non-misleading presentation;
- consistency with Brokerage standards.

The licensee remains fully responsible for all AI-assisted content published under the licensee's name or Brokerage affiliation.

11. WEBSITES, DOMAINS, AND ONLINE PRESENCE

Any agent or team website, landing page, or domain connected to licensed real estate activity must be approved by Brokerage before use.

Such websites or domains must:

- clearly identify HartFelt Real Estate LLC;
- not imply that the licensee or team is an independent brokerage;
- comply with this Policy and all applicable law and MLS rules.

Domains, handles, or branding that suggest an independent brokerage, company, or real estate firm are prohibited unless expressly approved and legally compliant.

12. SIGNS, LISTING MARKETING, AND PROPERTY PROMOTION

All signs and property marketing must comply with:

- seller authorization;
- MLS rules;
- local ordinances and association rules, where applicable;
- Brokerage standards.

Licensees must promptly remove or update signs and marketing materials when a listing status changes, expires, closes, or is otherwise no longer authorized for advertising.

13. APPROVAL, REVIEW, AND AUDIT RIGHTS

Brokerage may require prior approval of advertising and marketing materials at its discretion.

Brokerage reserves the right to:

- review and audit advertising at any time;
- require correction, revision, or removal of any marketing piece;
- restrict use of certain branding, platforms, vendors, or tools;
- require retraining for compliance deficiencies.

Licensees must promptly comply with any Brokerage directive relating to advertising corrections or removals.

14. RECORDKEEPING

Licensees may be required to provide copies, screenshots, links, login access, or other records of advertising or marketing materials upon Brokerage request for compliance review, audit, or recordkeeping purposes.

15. DISCIPLINE FOR VIOLATIONS

Violations of this Policy may result in any action Brokerage deems appropriate, including:

- verbal or written warning;
- mandatory retraining;
- suspension of advertising or marketing privileges;
- required correction or removal of non-compliant materials;
- reimbursement of direct correction costs where authorized by written agreement;
- internal compliance review;
- termination of affiliation;
- reporting to MLS, REALTOR® association, or regulatory authorities where required.

False, deceptive, or misleading advertising can also expose a licensee to Florida discipline.

16. NO WAIVER

Brokerage's review, approval, or failure to object to any advertising does not waive the licensee's independent responsibility to comply with this Policy and applicable law.

SOCIAL MEDIA GUIDELINES & DIGITAL CONDUCT POLICY
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

These Social Media Guidelines ("Policy") govern all social media, digital content, and online communications created or shared by agents affiliated with Hartfelt Real Estate LLC ("Brokerage").

Compliance with this Policy is a condition of affiliation.

1. SCOPE

This Policy applies to all online activity related to real estate or the Brokerage, including but not limited to:

- Instagram, Facebook, LinkedIn, TikTok, X (Twitter), YouTube
- Personal and professional accounts
- Stories, reels, posts, comments, DMs, lives, and ads
- AI-generated, scheduled, or automated content

If you're talking about real estate, this policy applies.

2. REQUIRED BROKERAGE DISCLOSURE

- All real estate–related profiles and posts must clearly disclose:
    - Hartfelt Real Estate LLC
    - Agent's license status (Sales Associate / Broker Associate, where required)
- Brokerage name must be readily noticeable and not hidden in bios or links.

3. CONTENT STANDARDS (WHAT'S ALLOWED)

Agents may post:

- Property marketing with written authorization
- Educational real estate content
- Market commentary framed as opinion, not guarantees
- Personal branding content consistent with professionalism
- SmartBuy content using approved language and disclosures

All content must be:

- Truthful and non-misleading
- Fair Housing compliant
- Respectful and professional

4. PROHIBITED CONTENT

Agents may not post or imply:

- Guaranteed prices, appreciation, or returns
- "Can't lose," "risk-free," or similar language
- Discriminatory or exclusionary statements
- Misleading before/after claims without context
- Client confidential information without written consent
- Screenshots of contracts, wire info, or private communications
- Legal, tax, or investment advice

5. FAIR HOUSING & COMMUNITY REFERENCES

- Do not describe neighborhoods by demographics, schools, income, or lifestyle characterizations.
- Focus on property features, not who should or should not live there.
- Emojis, slang, hashtags, and AI captions must also comply.

6. SMARTBUY & AI CONTENT RULES

6.1 SmartBuy

When referencing SmartBuy:

- Clearly state it is an optional program
- Avoid presenting it as automated advice or guarantees
- Use Brokerage-approved scripts and disclosures

6.2 AI-Generated Content

- AI-assisted content is permitted with human review
- Agents are responsible for accuracy and compliance
- AI outputs may not be posted blindly or without verification

7. CLIENT INTERACTIONS & MESSAGES

- DMs, comments, and texts are considered advertising and business records
- Do not negotiate material terms solely via social media
- Be professional and assume communications may be reviewed or discoverable

8. USE OF MLS DATA & MEDIA

- Do not repost MLS photos, data, or remarks unless authorized
- Respect copyright and intellectual property rights
- Virtual staging or AI-enhanced images must be disclosed if required

9. POLITICAL, CONTROVERSIAL & PERSONAL CONTENT

- Agents may express personal views, but must:
    - Avoid harassment or discriminatory language
    - Avoid implying Brokerage endorsement
    - Keep business and personal accounts clearly distinguishable when possible

10. ADVERTISING APPROVAL & MONITORING

- The Brokerage may require prior approval of social media content
- Non-compliant content must be removed immediately upon request
- Repeated violations may result in loss of posting privileges

11. VIOLATIONS & DISCIPLINE

Violations of this Policy may result in:

- Mandatory retraining
- Content removal
- Suspension of marketing privileges
- Termination of affiliation
- Reporting to MLS or regulators if required

SOCIAL MEDIA QUICK GUIDE
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

APPROVED AGENT BIO TEMPLATES

(Use one of these – do not freestyle)

Standard Bio

Licensed Real Estate Sales Associate at Hartfelt Real Estate LLC | Helping buyers & sellers navigate residential real estate with clarity and strategy.

Investor / SmartBuy-Friendly Bio

Licensed Real Estate Sales Associate at Hartfelt Real Estate LLC | Residential & investment real estate | SmartBuy execution support (optional program)

Short Bio (IG / TikTok)

Real Estate | Hartfelt Real Estate LLC
Licensed FL Sales Associate
Homes · Deals · Strategy

Rules

- Brokerage name must be visible
- No guarantees, no “expert investor,” no “wealth builder” claims
- No “independent,” “private,” or “off-market specialist” language without approval

SMARTBUY – APPROVED SOCIAL CAPTIONS

(Safe, compliant, reusable)

General Awareness

SmartBuy is an optional program we use to help clients analyze opportunities and execute smarter — always with broker supervision and client decision-making.

Buyer-Facing

Some buyers prefer more data and structure. SmartBuy helps organize the process — pricing, timing, and execution — without replacing professional judgment.

Investor-Facing

SmartBuy provides tools and execution support for clients evaluating deals. No guarantees — just better information and cleaner execution.

DO NOT SAY

"AI finds deals"

"Guaranteed numbers"

"Automated investing"

"Hands-off returns"

✅ POST THIS / ❌ DON'T POST THIS

✅ POST THIS

- Property features
- Educational tips ("What to know before...")
- Market observations framed as opinion
- Behind-the-scenes (non-confidential)
- SmartBuy using approved language
- "DM me to discuss" (not "I guarantee")

❌ DON'T POST THIS

- Guaranteed prices, profits, or returns
- Client names, contracts, wire info
- Screenshots of private messages
- Neighborhood demographic descriptions
- "Risk-free," "can't lose," "sure thing"
- Legal, tax, or investment advice

⚠️ QUICK REMINDERS

- Social posts = advertising + business records
- AI content must be human-reviewed
- When in doubt, ask the broker before posting
- Non-compliant content must be removed immediately

MLS USAGE & COMPLIANCE POLICY
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

This MLS Usage & Compliance Policy ("Policy") governs how agents affiliated with Hartfelt Real Estate LLC ("Brokerage") access, use, and comply with Multiple Listing Service ("MLS") rules and requirements.

Compliance with this Policy is a condition of affiliation.

1. GENERAL PRINCIPLES

Agents must:

- Comply with all MLS rules, bylaws, and data use policies applicable to their MLS
- Follow Florida law, DBPR/FREC regulations, and Brokerage policies
- Use MLS data only for authorized real estate purposes
- Maintain accuracy, timeliness, and professionalism in all MLS activity

2. ACCESS & CREDENTIALS

- MLS access is granted individually to licensed agents in good standing.
- Sharing login credentials is strictly prohibited.
- Agents are responsible for all activity conducted under their MLS credentials.
- Access may be suspended for violations, license issues, or nonpayment of dues.

3. LISTING INPUT & ACCURACY

Agents are responsible for ensuring that all MLS entries are:

- Truthful, accurate, and complete
- Supported by written seller authorization
- Updated promptly upon any material change

Required accuracy includes:

- Property type, status, and pricing
- Square footage (with proper disclosures if estimated)
- Bedroom/bathroom counts
- Lot size and zoning (when advertised)
- HOA information (if applicable)

Knowingly entering false or misleading data is grounds for discipline.

4. TIMELINESS OF LISTINGS

- Listings must be entered into the MLS within the timeframe required by the MLS after execution of a listing agreement or change in status.
- "Coming Soon," status changes, and withdrawals must follow MLS-specific rules.
- Pocket listings or delayed entry may only be used where permitted and with proper disclosures.

5. STATUS CHANGES & UPDATES

Agents must promptly update the MLS to reflect:

- Under Contract / Pending status
- Price changes
- Withdrawals or cancellations
- Closed / Sold status

Failure to update status in a timely manner may result in fines or sanctions.

6. PHOTOS, MEDIA & INTELLECTUAL PROPERTY

- Agents must have rights to use all photos, videos, floor plans, and media uploaded to the MLS.
- MLS content may not be copied, scraped, or redistributed outside permitted uses.
- AI-enhanced images or virtual staging must comply with MLS disclosure rules and may not be misleading.

7. REMARKS & ADVERTISING LANGUAGE

- MLS remarks must be factual and non-discriminatory.
- No guarantees, inducements, or misleading claims.
- No references to protected classes or neighborhood demographics.
- No promotion of services unrelated to the listed property unless permitted.

8. SHOWINGS & COOPERATION

- Agents must cooperate with other MLS participants as required.
- Showing instructions must be accurate and followed.
- Access restrictions must be clearly disclosed.

9. COMMISSION & COMPENSATION DISCLOSURES

- Offered compensation must be stated clearly and in accordance with MLS rules.
- Any changes to compensation must be properly documented and updated.
- Side agreements affecting compensation must comply with Brokerage policy and law.

10. DATA SECURITY & CONFIDENTIALITY

- MLS data is confidential and proprietary.
- Agents may not:
    - Share MLS data with unlicensed individuals
    - Use MLS data for non-brokerage purposes
    - Sell or distribute MLS data

All MLS data must be protected in accordance with the Brokerage's Privacy & Dat Security Policy.

11. SMARTBUY & MLS USE

- SmartBuy tools may be used to analyze MLS data only as permitted by MLS rules.
- MLS data may not be exported, repurposed, or automated in violation of MLS agreements.
- Any technology using MLS data must be approved by the Brokerage.

12. VIOLATIONS & DISCIPLINE

MLS violations may result in:

- MLS fines or sanctions
- Mandatory retraining
- Suspension of MLS access
- Brokerage discipline, including termination
- Reporting to regulatory authorities when required

Agents are responsible for all fines or penalties imposed due to their actions.

13. AUDITS & COOPERATION

MLS violations may result in:

- The Brokerage may audit MLS usage at any time.
- Agents must cooperate with MLS or Brokerage investigations or inquiries.

TECHNOLOGY USE POLICY
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

This Technology Use Policy ("Policy") governs the use of all technology systems, platforms, software, and tools provided, approved, or permitted by Hartfelt Real Estate LLC ("Brokerage"), including but not limited to CRM systems, AI tools, marketing platforms, transaction management systems, and SmartBuy-related technology.

Compliance with this Policy is a condition of affiliation.

1. COVERED TECHNOLOGY

This Policy applies to all Brokerage-related use of:

- Customer Relationship Management (CRM) systems
- Transaction management platforms
- Marketing and advertising platforms
- Email, SMS, and communication tools
- AI-assisted tools (including SmartBuy, analytics, automation, content generation)
- MLS-integrated technology
- Brokerage-provided devices, logins, or accounts

2. AUTHORIZED USE ONLY

Agents may:

- Use Brokerage technology solely for authorized real estate brokerage activities
- Access systems only with their own credentials
- Use technology in compliance with:
    - Brokerage policies
    - MLS rules
    - Fair Housing laws
    - Privacy and data security requirements

Agents may not use Brokerage technology for personal, unlawful, deceptive, or non-brokerage purposes.

3. DATA OWNERSHIP & CONTROL

Agent acknowledges that:

- All data generated, stored, or processed through Brokerage systems—including:
  - Leads
  - Client records
  - CRM data
  - SmartBuy outputs
  - Marketing analytics

  —is Brokerage property, unless otherwise agreed in writing.
- Access to systems and data is limited, revocable, and conditional.
- Upon termination, access is revoked and data may not be retained, copied, or exported.

4. AI & SMARTBUY USE RULES

4.1 Permitted AI Use

AI and analytics tools may be used to:

- Assist with data organization and analysis
- Support marketing and content drafting
- Help evaluate scenarios or workflows

4.2 Prohibited AI Use

Agents may not:

- Present AI outputs as guaranteed, authoritative, or professional advice
- Rely on AI without human review
- Use AI to provide legal, tax, or investment advice
- Represent AI tools as replacing broker supervision

All AI outputs must be reviewed for accuracy, bias, and compliance.

5. MARKETING & COMMUNICATION TOOLS

- CRM campaigns, email, SMS, and ads must comply with:
    - Advertising Rules Policy
    - Social Media Guidelines
    - Anti-spam and consent laws
- Opt-out requests must be honored promptly.
- Marketing automation must be reviewed regularly to ensure accuracy.

6. DATA SECURITY & PRIVACY

Agents must:

- Protect login credentials and use strong passwords
- Avoid storing Brokerage data on unsecured personal devices or accounts
- Never email wiring instructions or sensitive personal data
- Immediately report suspected data breaches, hacking, or unauthorized access

All data use must comply with the Brokerage's Privacy & Data Security Policy.

7. MLS & THIRD-PARTY INTEGRATIONS

- MLS data may only be used as permitted by MLS rules.
- Agents may not scrape, export, or repurpose MLS data using automation or AI tools without approval.
- Third-party tools integrating with MLS or CRM systems require Brokerage approval.

8. MONITORING & AUDITS

- The Brokerage may monitor, audit, or review system usage to ensure compliance.
- Agents have no expectation of privacy in Brokerage systems, to the extent permitted by law.

9. VIOLATIONS & DISCIPLINE

Violations of this Policy may result in:

- Suspension of technology access
- Loss of lead eligibility
- Mandatory retraining
- Disciplinary action or termination
- Reporting to MLS or regulators when required

Agents may be financially responsible for losses caused by misuse.

10. TERMINATION OF ACCESS

Upon termination of affiliation:

- All system access is revoked immediately
- Agent must cease use of all Brokerage technology
- Brokerage data may not be retained in any form

11. NO GUARANTEE OF SYSTEM AVAILABILITY

Brokerage does not guarantee uninterrupted access, accuracy, or performance of technology systems and is not liable for outages, errors, or third-party failures.

STANDARD OPERATING PROCEDURES (SOP) MANUAL
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

HartFelt Real Estate is committed to professionalism, compliance, and client protection.

These policies establish the standards that govern how our agents operate, protect clients, and maintain regulatory compliance.

Applies To: Broker, agents, admin staff, transaction coordinators, ISAs, and authorized contractors

1. PURPOSE OF SOPs

These Standard Operating Procedures ("SOPs") establish how work is performed consistently and compliantly at Hartfelt Real Estate LLC ("Brokerage").

SOPs:

- Reduce errors and liability
- Ensure regulatory compliance
- Create repeatable systems
- Protect clients, agents, and the Brokerage

Failure to follow SOPs may result in delayed commissions, discipline, or termination.

2. ROLES & RESPONSIBILITIES

2.1 Broker of Record

- Regulatory supervision
- Final approval of transactions, marketing, and compliance matters
- E&O and risk oversight

2.2 Agents

- Client representation
- Accurate documentation
- Compliance with all policies and SOPs

2.3 Admin / Transaction Support

- File review
- Compliance tracking
- System management

3. AGENT ONBOARDING SOP

Before activation, the following must be completed:

1. All onboarding documents signed
2. W-9 and payment info submitted
3. License verified and transferred (if applicable)
5. MLS/Association acknowledgment signed
5. System access granted

No onboarding = no MLS, no leads, no commissions.

4. LEAD MANAGEMENT SOP

4.1 Lead Assignment

- Brokerage-Generated Leads are assigned at Brokerage discretion
- Tier disclosure must occur at assignment
- SmartBuy leads follow SmartBuy rules and disclosures

4.2 Lead Response Standards

- Initial response within 24 hours
- Professional documentation of follow-up
- Failure to respond = lead reversion

5. LISTING SOP

Required before marketing:

- Executed listing agreement
- Seller disclosures completed
- MLS input reviewed for accuracy
- Marketing authorization confirmed

Within 24 hours:

- Listing entered into MLS
- Transaction file opened

6. BUYER REPRESENTATION SOP

- Buyer Agency Agreement executed before submitting offers
- Proof of funds / pre-approval obtained
- All offers submitted in writing
- Counteroffers documented and retained

7. TRANSACTION MANAGEMENT SOP

- All contracts uploaded within 24 hours
- Deposits tracked and documented
- Amendments uploaded immediately
- Broker review completed prior to closing

No file = no commission.

8. ESCROW HANDLING SOP

- Agents may not hold escrow unless authorized
- Escrow delivered within statutory timelines
- Disputes reported immediately via Incident Report Form
- No escrow instructions sent via email

9. ADVERTISING & MARKETING SOP

- Brokerage name must be prominent
- No guarantees or misleading language
- SmartBuy language must follow approved scripts
- Team branding requires approval

10. SOCIAL MEDIA SOP

- Brokerage disclosed on all real estate content
- AI content must be reviewed before posting
- No client info or contracts shared
- Non-compliant content must be removed immediately

11. MLS USAGE SOP

- Listings entered and updated timely
- Accurate data only
- No misuse of MLS data
- MLS notices reported to Brokerage immediately

12. COMPLIANCE & INCIDENT REPORTING SOP

- Any complaint, error, threat, or concern → Incident Report within 24 hours
- No admissions of fault
- No settlements without Broker approval
- E&O carrier contacted only by Broker

13. COMMISSION RELEASE SOP

Before commission release:

- File fully complete
- All disclosures uploaded
- Closing statement received
- W-9 on file

14. RECORD RETENTION SOP

- Files retained per Florida law and Brokerage policy
- No unauthorized deletion or alteration
- Confidential information protected at all times

15. AGENT EXIT SOP

Upon termination:

- System access revoked immediately
- Brokerage data returned
- Branding discontinued
- Active files reassigned
- Post-termination obligations enforced

16. AMENDMENTS & UPDATES

SOPs may be updated at any time by the Brokerage.
Agents will be notified of material changes.

COMMISSION DISPUTE RESOLUTION POLICY
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

This policy establishes the procedures used by HartFelt Real Estate LLC ("Brokerage") to resolve disputes related to commissions, procuring cause, referral fees, and commission allocations between agents affiliated with the Brokerage.

The purpose of this policy is to provide a fair, structured process for resolving disputes while protecting clients and ensuring compliance with brokerage policies and applicable law.

1. BROKER AUTHORITY

The Broker of Record has final authority over all commission disputes involving agents affiliated with the Brokerage.

Agents acknowledge that all commissions are earned by and paid to the Brokerage first, and that the Brokerage has the authority to determine the appropriate allocation of commissions between agents.

2. TYPES OF DISPUTES

This policy applies to disputes including, but not limited to:

- Procuring cause disputes
- Buyer representation disputes
- Listing agent disputes
- Team commission splits
- Referral fee disputes
- Lead source disputes
- Co-agent compensation disagreements

3. GOOD FAITH RESOLUTION

Agents are encouraged to attempt to resolve disputes in good faith between themselves before requesting broker intervention.

If a resolution cannot be reached, the dispute must be submitted to the Broker of Record in writing.

4. DISPUTE SUBMISSION

An agent initiating a commission dispute must submit a written request to the Brokerage that includes:

- A description of the dispute
- Relevant transaction details
- Supporting documentation
- Any communications related to the dispute

The Broker may request additional information from any party involved.

5. BROKER REVIEW PROCESS

Upon receiving a dispute, the Broker of Record may:

- Review transaction files and communications
- Interview the agents involved
- Review brokerage policies and agreements
- Evaluate evidence of procuring cause or contractual agreements

The Broker may also consider MLS rules, REALTOR® standards, and customary real estate practices when making a determination.

6. TEMPORARY HOLD ON COMMISSIONS

The Brokerage reserves the right to hold disputed commission funds until the dispute has been resolved.

Agents agree that the Brokerage may delay disbursement of commissions while the matter is under review.

7. BROKER DETERMINATION

After reviewing the dispute, the Broker of Record will issue a determination regarding the allocation of the commission.

This determination may include:

- Allocation of commission between agents
- Enforcement of existing team or referral agreements
- Adjustment of compensation in accordance with brokerage policies

The Broker's determination shall govern internal brokerage allocation of commissions, subject to any required MLS or REALTOR® arbitration procedures.

8. EXTERNAL DISPUTES

If a dispute involves agents from different brokerages, the Brokerage may:

- Follow MLS or REALTOR® association arbitration procedures
- Participate in mediation or arbitration if required

Agents agree to cooperate with any required dispute resolution process.

9. PROHIBITED CONDUCT

Agents may not:

- Interfere with another agent's client relationship
- Make false claims regarding procuring cause
- Attempt to collect commissions outside Brokerage supervision

Violations may result in disciplinary action.

10. POLICY AMENDMENTS

The Brokerage reserves the right to modify this policy as needed to maintain compliance and operational efficiency.

TRANSACTION FILE REQUIREMENTS POLICY
Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

This Transaction File Requirements Policy ("Policy") sets forth the mandatory documentation, timelines, and standards for all real estate transactions handled by agents affiliated with Hartfelt Real Estate LLC ("Brokerage").

Compliance with this Policy is a condition of affiliation.

1. GENERAL REQUIREMENTS

- A transaction file is required for every transaction, including:
  - Listings
  - Buyer representation
  - Leases (where applicable)
  - Terminated, expired, or withdrawn transactions
- All files must be maintained in the Brokerage-approved transaction management system.
- Files must be complete, accurate, and timely.

Incomplete files may delay commission payment and result in disciplinary action.

2. REQUIRED DOCUMENTS — LISTING FILES

Each listing file must include:

- Fully executed Listing Agreement
- Seller Agency Disclosure
- Required Property Disclosures (Seller's Disclosure, Lead-Based Paint, etc.)
- MLS printout confirming entry and accuracy
- Pricing changes or amendments
- Marketing authorization (if applicable)
- Status change documentation (Active, Pending, Sold, Withdrawn, Expired)

3. REQUIRED DOCUMENTS — BUYER FILES

Each buyer transaction file must include:

- Buyer Agency Agreement
- Fully executed Purchase Contract
- All counteroffers and addenda
- Required disclosures
- Proof of funds and/or loan pre-approval
- Inspection notices and responses
- Financing contingencies and waivers
- Escrow deposit confirmation

4. REQUIRED DOCUMENTS — CLOSED FILES

All closed transaction files must include:

- Final executed contract and addenda
- Closing Disclosure / Settlement Statement
- Proof of commission payment
- Brokerage compliance sign-off
- Any repair agreements or credits
- Final MLS status update confirmation

5. REQUIRED DOCUMENTS — TERMINATED / CANCELLED FILES

If a transaction does not close, the file must still include:

- Executed contract (if applicable)
- Termination or cancellation agreement
- Escrow disposition documentation
- Written explanation of termination
- Brokerage notification and acknowledgment

6. ESCROW & DEPOSIT DOCUMENTATION

- Proof of escrow deposit must be submitted within required statutory timeframes.
- Any escrow disputes must be reported immediately using the Brokerage Incident Report Form.
- Agents may not hold escrow funds unless expressly authorized.

7. TIMING & SUBMISSION DEADLINES

Unless otherwise stated:

- **Within 24 hours** of execution:
  - Contracts
  - Addenda
  - Disclosures
- **Within 48 hours** of deposit receipt:
  - Proof of escrow deposit
- **Within 48 hours of closing:**
  - Final settlement documents

8. FILE REVIEW & AUDITS

- The Brokerage reserves the right to audit files at any time.
- Agents must promptly correct deficiencies upon notice.
- Repeated non-compliance may result in:
  - Delayed commissions
  - Loss of lead eligibility
  - Disciplinary action or termination

9. RECORD RETENTION

- Repeated non-compliance may result in:
    - Delayed commissions
    - Loss of lead eligibility
    - Disciplinary action or termination

10. CONFIDENTIALITY & DATA SECURITY

- Transaction files contain confidential information.
- Files may only be accessed by authorized personnel.
- Unauthorized sharing or storage is prohibited.

11. COMMISSIONS & FILE COMPLETION

- No commission will be released until:
    - File is complete
    - All required documents are submitted
    - Brokerage approval is obtained